REPUBLIC OF KENYA

IN THE RETIREMENT BENEFITS APPEALS TRIBUNAL AT NAIROBI

TRIBUNAL APPEAL NO. E019 OF 2025

BETWEEN

TRUSTEES OF THE MAZINGIRA STAFF PENSION SCHEME ..... APPELLANTS

AND

CHIEF EXECUTIVE OFFICER, RETIREMENT BENEFITS AUTHORITY ..... RESPONDENT

JUDGMENT

Coram: C. W. Gitau-Ronoh (Chairperson), A. O. Makokha, H. S. Abdi (Members)

Delivered on 9th July 2026

Introduction

1. The Appellants challenge the decision of the Respondent dated 17th April 2025 deregistering the Mazingira Staff Pension Scheme for failure to submit audited accounts for the years 2022 and 2023.

2. The Scheme has 412 members and assets of approximately KES 1.3 billion. The Appellants say that the accounts were late because the sponsor changed auditors, and that deregistration is disproportionate.

The law

3. The power to deregister a scheme is set out in section 28 of the Retirement Benefits Act, 1997. Under section 31 of the Act, the register kept by the Authority is admissible as evidence of the matters recorded in it.

4. Article 47 of the Constitution guarantees administrative action that is expeditious, efficient, lawful, reasonable and procedurally fair, and requires written reasons where a right is adversely affected.

Analysis

5. The record shows that the Respondent issued a notice of intention to deregister on 2nd February 2025 and gave the Appellants 14 days to respond. The Appellants responded within time, enclosing draft accounts and a letter from the new auditors.

6. The decision letter does not engage with that response at all. A decision that ignores the representations it invited is not procedurally fair.

7. We were referred to Trustees of Kilimo Provident Fund v Retirement Benefits Authority [2021] KERBT 90017 (KLR), where the Tribunal set aside a deregistration that had been made without considering mitigation. We agree with that approach.

Orders

8. The appeal is allowed and the decision of the Respondent dated 17th April 2025 is set aside.

9. The Appellants shall file the audited accounts for 2022 and 2023 within 60 days of this judgment.

10. Each party shall bear its own costs.

C. W. GITAU-RONOH

CHAIRPERSON